The ESC exchange (COM-26-01249): the decision-maker point, your letters, their silence, and the human-rights and anti-discrimination routes

Prepared for Cory Lea Shepherd, 10 November 2026. Companion to the assessment of the same date. Draft for discussion with your lawyer. Privileged. Not for service or filing.

1. The point, expanded

What it is. The CCC referred CO-26-1318 to a named office for a stated reason. On 31 March 2026 it wrote that the allegations were "appropriate to refer to the QPS Deputy Commissioner, who is independent from QPS ESC". On 28 April it confirmed the referral had gone to the Deputy Commissioner, with your 8 April email. The Outcome Advice of 10 September says the complaint "was assessed by the ESC, including review by the State Coordinator" and refers to a "committee". It does not mention the Deputy Commissioner. So the body whose handling you complained about assessed the complaint that included that very concern, and nothing on the record explains how it came to do so.

Why it has force. Three reasons, in order of weight.

1. It is a question of fact, not opinion. Either the Deputy Commissioner made a decision on the referral or did not. The answer is in QPS's own allocation records. No argument is needed from you, and no argument is available to them except the answer.
2. The reason the CCC gave for the referral was independence from ESC. That was not a slip. The CCC's 31 March letter records that you had raised "concerns about the QPS Ethical Standards Command". The referral destination was chosen to meet that concern. When ESC decided, the CCC's own basis for devolving the matter was not honoured, whatever the legality of the internal allocation.
3. It is the one defect that survives every answer they can give. If the Deputy Commissioner never looked at it, the referral premise failed. If the Deputy Commissioner allocated it to ESC, the office complained about assessed itself. If the Deputy Commissioner endorsed the Outcome Advice, a senior officer has adopted a letter that mis-describes the complaint. Each answer is a fact the CCC does not yet have.

Its legal limits, which you should hold in view. Section 42(5) of the Crime and Corruption Act says a complaint referred by the CCC must be dealt with "in the way the commissioner of police considers most appropriate, subject to the commission's monitoring role". The Act does not require any particular officer to decide, and the CCC's independence reason was its reason, not a condition it had power to impose on QPS. So this is a fairness point and a monitoring point, not a breach of statute. The fairness principle is ordinary: a body should not assess a complaint about its own handling. The monitoring point is for the CCC, which is the only body with a statutory role over how QPS dealt with its referral. Neither point gives you a right of review.

And the time-bar context. Under s 7.12 of the Police Service Administration Act, a disciplinary proceeding must start within the latest of one year from the conduct, six months from receipt of the complaint by the Commissioner or the CCC, or six months after the end of a proceeding against the officer. For the February–May 2025 conduct every period had run by late September or late October 2026. So even an uncontested win on the decision-maker point cannot now produce discipline over the 2025 events. What it can still produce: a correct record of who decided and what was assessed; a real answer on the Information Commissioner agreement; attention to the March 2026 allegation, which is still inside the one-year period until March 2027.

2. What you wrote, and how each part works

The 29 October 2026 letter

Your paragraph	What it does	Does it serve the point?
Opening: not a new complaint; not asking ESC to decide the criminal case or the occurrence; no allegation of improper intent; asking only whether the referred matters were assessed, by whom and on what records	Fixes the scope and lowers the register. Keeps the letter administrative rather than accusatory, which means you do not take on the heavier burden that attaches to allegations of bad faith.	Yes. This is the right frame and it should open any further letter.
The CCC chronology (30 and 31 March; 28 April; your 14, 23 July and 9 September emails and the two acknowledgments) → "the Advice instead says that the complaint was assessed by ESC" → "In effect, ESC has finalised a matter the CCC referred to someone independent of it, and the Advice does not say on whose authority it did so. If the Deputy Commissioner made no separate determination, I ask that you say so."	States the point from the documents and asks a yes/no question.	Yes. This is the strongest paragraph in the chain. It needs nothing added.
The complaint described is not the complaint referred: contradicting statements, the OIC directions, the March 2026 reprisal and the ESC concerns, versus the Advice's "interference with your court matters … disclosure of court ordered material"	Exposes the re-description, and the way it let a single answer ("raise it in court") cover matters that are not before any court.	Yes. Second-strongest. It shows the reasoning is non-responsive, which is the one quality defect a reviewer can see on the face of the two documents without any evidence from you.
The Information Commissioner agreement: 12 August 2025 agreement in principle; 11 September 2025 review finalised; RTI/56733 opened 17 September, decision due 20 October; 17 November you reported the agreed segments missing; 19 November the OIC asked whether a formal decision had issued; your concession that an agreement to process a scoped application was not an unconditional promise; the request to identify the RTI/56733 decision and whether the three serials were in scope, examined by ESC or supplied	Separates a statutory access process from court disclosure and asks concrete record questions. The concession is well judged: it removes their easiest answer.	Yes, but it is the longest paragraph and it is really two letters — one to ESC and one that belongs to the OIC. The OIC question (was a decision issued, and is the search sufficient) is better put to the OIC, who can compel an answer.
What the Advice does not assess at all: the reprisal appears only as "potential reprisal action", no occurrence, fact or reasoning; QP2402065947 not mentioned; the 8 April particulars not addressed; the ESC-suitability concern restated but not decided, and assessed by ESC itself; "may include" says nothing about what was obtained; no indication whether the 14 July report and 23 July guide were on the file	Lists the omissions by reference to their own text. The "may include" observation is sharp: it is conditional language that commits to nothing.	Yes. This and the previous two paragraphs are the core of the letter.
The arrest: the 30 June 2025 statement citing serial X60508355; the 17 July 2025 statement that the building manager "knew little"; the manager's declaration paragraphs 28–32; your transcription of "technically allowed to be here"; which provision of s 365 of the Police Powers and Responsibilities Act; the PPN relied on against someone interstate and vacated the next day	Argues the merits of the arrest.	No — for this forum. It is your defence, and it invites the "judicial arbitration" answer you already received. It also previews your cross-examination to the people who will brief the witnesses. Strong in court; a liability in a complaint letter. The last sentence in particular reads as three points compressed into one and is the kind of line that gets quoted back.

Your paragraph	What it does	Does it serve the point?
Human rights and anti-discrimination: the committee's conclusion identifies no right, fact or reasoning; were ss 13, 29 and 58 of the Human Rights Act considered; the Anti-Discrimination Act is not mentioned; diagnosis of 24 October 2024; impairment is an attribute under s 7(h); were ss 7(h), 10, 101 and 129–131 considered; what was concluded; s 42(7) of the Crime and Corruption Act — action taken, why appropriate, result	Half of this is strong: a bare "the committee determined" is not a reasoned conclusion, and s 42(7) is the right provision to cite because the CCC itself told you QPS must give those three things. The other half widens the letter into a new field.	Mixed. The s 42(7) request and the "identifies no right, no fact and no reasoning" sentence serve the point. The anti-discrimination questions are easy to answer with one sentence ("the Anti-Discrimination Act was not engaged by the complaint") and give the reader a paragraph to deal with while the hard question waits.
Requests: record that the referred matters were not assessed as described; treat the 10 September finding as incomplete; remit to the Deputy Commissioner's office for assessment outside the Southport chain; state in one sentence who the decision-maker was; in the alternative a dated written account of how each matter was assessed, by whom and on what records; a reply that repeats the Advice would not answer; reply by Thursday 12 November or name a responsible officer and a date	Asks for small, specific things and pre-empts the template reply.	Yes, with one reservation: "remit" is beyond what the Complaint Management Unit can do without reopening, and reopening is normally triggered by new information rather than argument. The alternative request (a dated account of how each matter was assessed) is the one they can actually answer.
Preservation of the three serials and metadata, upload/audit/export logs, the RTI/56733 file, and the allocation, committee and assessment records for COM-26-01249; offer of indexed exhibits by secure process; CCC not copied; references to keep in the subject line	Fixes the evidence and shows compliance with the CCC's 28 July request.	Yes. Asking for the allocation and committee records to be preserved is quietly the most useful line in the letter: those records are the answer to the decision-maker question.

The 5 November 2026 letter

Three requests — confirm receipt and filing of the 29 October email; state who the decision-maker is; name a responsible officer and a date — plus a repeat of the preservation request. No new material. This is the better letter of the two for this stage: short, answerable, and it records that the 29 October letter was not even acknowledged.

What the two letters together achieve

They put on the record, in your words and theirs, a closed chain: the CCC's stated premise → an ESC decision → ESC's own re-description of the complaint → a precise and bounded challenge, twice → no acknowledgment. That is the record a monitoring request to the CCC needs, and it shows you did what the CCC's 28 April letter told you to do first ("engage with the QPS in the first instance"). They also fix the date on which the March 2026 conduct was raised with QPS in writing.

3. The defects in their reasoning, listed

1. **Non-responsive summary.** The complaint summarised is narrower than, and different from, the complaint the CCC recorded. Two of the four recorded allegations (the OIC directions and the March 2026 conduct) disappear into "disclosure of court ordered material" and "potential reprisal action".
2. **Wrong forum applied to non-court matters.** "Raise it in court" has a legitimate application to the statements and the specimen while a prosecution is on foot. It has none for a statutory access agreement, for conduct in March 2026, or for a complaint about ESC's own earlier handling. None of those is before a court.
3. **Conditional description of the evidence.** "Information gathered … may include" footage, records and witness accounts. It is not a statement of what was examined. On a complaint whose core was three identified serials, the absence of a statement that those serials were viewed is conspicuous.

4. **Compliance asserted without a standard named.** "Consistent with applicable policy and legislative requirements" names no policy and no provision, including for the arrest power.
5. **Bare conclusions on rights.** A "committee" determined no undue limit on human rights and no Charter contravention. No right, fact or reason is given. Whether or not the conclusion is right, it is not reasoned.
6. **The decision-maker.** As above.
7. **The referral material.** No mention of the 14 July report or the 23 July guide, both acknowledged by the Deputy Commissioner's office; no mention of the 8 April particulars the CCC confirmed were included.
8. **Process timing.** Seven weeks from referral to registration; one business day for particulars; the Advice issued the day after your chaser to the Deputy Commissioner's office and within days of the six-month disciplinary clock from the CCC's receipt of the new allegations running out. Timing alone proves nothing, but it fits a file closed rather than assessed.

Against that list, one thing stands on their side: in form the Advice is a response under s 42(7). It states that no further action is taken and gives a reason. The law requires reasons; it does not prescribe their quality. Your complaint is about accuracy and completeness, which is a fair complaint and a monitoring question, not a breach you can enforce yourself.

4. Why they have not responded

In likely order:

1. **The file is closed in their system.** Once an outcome issues, post-outcome correspondence is logged as "noted" unless it contains new evidence. Your letters contain argument and record questions, not new evidence. The system has no step for them.
2. **The Complaint Management Unit is an intake unit, not a review unit.** The Outcome Advice's invitation to ask "how your complaint was assessed" is a template line. The unit can answer "who assessed it and when"; it cannot remit, reopen or re-assess. A letter asking it to do those things waits for someone who can, and that someone is not obliged to reply.
3. **You cited statutes.** A letter raising the Crime and Corruption Act, the Human Rights Act, the Anti-Discrimination Act and the arrest power is routed for legal review before anyone answers it. That adds weeks and often produces a shorter reply than the letter deserved.
4. **The copy to the Deputy Commissioner's office.** That office acknowledged twice and never substantively replied; its pattern is to forward. A letter copied to it goes into two queues, each able to assume the other is dealing with it.
5. **No legal duty to answer.** The s 42(7) duty was, in their view, discharged on 10 September. There is no statutory duty to answer follow-up correspondence, only general complaint-handling practice. Your 12 November date is your date; nothing happens to them when it passes.
6. **Time.** Twelve days since 29 October and five since 5 November. QPS correspondence routinely takes three to six weeks even when it is going to be answered.

The absence of any acknowledgment of either letter is the one feature that points to something other than ordinary delay: either the letters are unallocated, or a decision has been made not to engage. Either way, the next step is the same, and it does not depend on them.

5. Human rights and anti-discrimination: can you take it further?

Yes, in theory. In practice the routes are weaker than the ESC point, and two of them are largely spent. Here is each, with its precondition, its time limit, what it could produce, and the risk.

The Human Rights Act

- **The underlying conduct (February–March 2025) has already been through the Commission.** EDR19098 (Shepherd v QPS) went to conciliation on 14 May 2026, was recorded as unresolved on 18 June 2026, and the Commissioner's report under s 88 made no recommendations. A fresh complaint about the same acts would be refused as already dealt with, and the "no recommendations" report tells you how the Commission saw it.
- **A complaint about the ESC decision itself is open but narrow.** The Act makes it unlawful for a public entity to make a decision without giving proper consideration to a relevant human right (s 58(1)(b)). A decision not to act on a complaint is a decision. The "committee determined" sentence, with no right identified, is the kind of bare conclusion that supports an argument that no proper consideration was given. The preconditions are that you first complain to the entity (your 29 October letter arguably does this, because it raises ss 13, 29 and 58) and that 45 business days then elapse without an adequate response (s 65(1)). Counting from 29 October, that period runs to about 5 January 2027; a complaint could go to the Commission from about 6 January 2027. The Commission may refuse a complaint made more than a year after the act (s 70(1)(d)); the decision is 10 September 2026, so time is not a problem.
- **What it could produce.** Conciliation, and if unresolved, a report. No damages are available for unlawfulness under s 58 (s 59(3)). The Act lets a human-rights ground ride on another proceeding (s 59), but the only candidate — judicial review of the ESC decision — is already past its ordinary 28-day period. So the realistic yield is another conciliation and another report, about a complaint-handling decision rather than about what was done to you.
- **Which rights.** For a complaint-handling decision the relevant rights are thin: equality before the law (s 15) if impairment is in play; privacy (s 25) as to the footage; the rights in criminal proceedings (s 32) only by a stretch, through the withheld footage. Liberty and security (s 29) and property (s 24) attach to the 2025 conduct, which EDR19098 has already covered.

The Anti-Discrimination Act

- **The attribute exists.** Impairment is an attribute (s 7(h)); the diagnosis of 24 October 2024 supports it. Police functions are covered: a person performing a function or exercising a power under State law must not discriminate in doing so (s 101).
- **The test is the problem.** Direct discrimination requires that you were treated less favourably than a person without the impairment would have been in the same circumstances (s 10). That requires evidence the officers knew of the diagnosis at the time and that it bore on how they treated you. From the record I have seen, that evidence is not established. A diagnosis that exists is not the same as a diagnosis that was known to the decision-maker.
- **Time.** A complaint must be made within one year of the contravention (s 138(1)); later only if the Commissioner is satisfied you have shown good cause (s 138(2)). The February–May 2025 conduct is out of time. The March 2026 conduct is within time until March 2027.
- **Victimisation does not fit as pleaded.** Victimisation (ss 129–131) is detriment imposed because the person alleged a contravention of the Anti-Discrimination Act, refused to contravene it, or is involved in a proceeding under it. Your complaints to the CCC, the OIC and ESC are not acts under that Act. Only if EDR19098 (or any other complaint lodged with the Commission before March 2026) included a discrimination claim could the March 2026 conduct be framed as victimisation for involvement in a proceeding under the Act. That is a fact for you to check.
- **The reprisal you actually allege belongs elsewhere.** "They acted against me because I complained to the CCC" is a matter for the CCC: victimising a person for helping the Commission is an offence under s 212 of the Crime and Corruption Act. That sits naturally in the single monitoring letter to the CCC, not in a Commission complaint.
- **What the Act could produce.** This is the one route with enforceable remedies: if conciliation fails, the complaint can be referred to QCAT, which can order compensation. But only on a viable claim, and the viability problem is the knowledge-and-causation evidence above.

The Public Interest Disclosure Act

The disclosure was made to Metro South Health in May 2024 about workplace matters and determined by its Ethical Standards Unit in December 2024. Linking police conduct in 2025–2026 to that disclosure needs evidence that the officers knew of it and acted because of it. Your own project rules keep this track behind the WorkCover appeal for good reason. Leave it there.

The risks of opening either front now

1. **Spread.** Two CCC files, an ESC file, an OIC review, a QHRC conciliation and now letters citing three further Acts. Each new body is read as a pattern, and the CCC has already asked you to stop writing to it. A respondent's easiest submission to any of these bodies is the list of bodies.
2. **Your mental health in the criminal matter.** Pleading impairment-based discrimination against police while defending charges arising from the same events puts your diagnosis in play in the proceeding where it costs most.
3. **Low yield.** Conciliation and reports, against a complaint-handling decision, after the disciplinary time limits have passed.

Recommendation on these routes

Not as new fronts now. Three narrow things instead:

1. **Keep the human-rights question where it is** — a yes/no question to ESC about whether and how the rights were considered — and let the unanswered question sit on the record. If by early January 2027 there is still no adequate answer, decide then whether a s 58(1)(b) complaint about the ESC decision is worth a conciliation. The precondition will have been met by your 29 October letter.
2. **Protect the one Anti-Discrimination Act clock that is still running.** The March 2026 conduct can be the subject of a complaint until March 2027. Before February 2027, answer two questions on paper: what exactly was done in March 2026 (dates, instruments, who acted), and what evidence shows the officers knew of your diagnosis. If both exist, a complaint is arguable. If either is missing, do not file.
3. **Put the reprisal allegation to the CCC, not the Commission**, in the single monitoring letter already recommended, as a one-sentence reference to s 212 — "I also note that the March 2026 conduct followed my complaint to the Commission" — and no more.

6. The short version

Your decision-maker point is strong, factual and well put. It is answerable, in one sentence, but every available answer gives you a fact you do not yet have, and the body that can act on that fact is the CCC. Your 29 October letter is right in its scope, its chronology and its omissions list; it is weakened by the arrest argument and by widening into anti-discrimination. Their reasoning is defective in the ordinary administrative ways — non-responsive summary, wrong forum applied to non-court matters, conditional description of evidence, bare conclusions, undisclosed decision-maker — but it is formally a response and there is no complainant's right of review. Their silence is most likely a closed file plus legal routing plus two queues, with no duty to answer. The human-rights route on the underlying conduct is spent; on the decision itself it is open from about 6 January 2027 but yields only conciliation and a report. The anti-discrimination route has a live clock only for the March 2026 conduct and depends on evidence of knowledge that has not yet been shown. The reprisal allegation belongs with the CCC. Nothing in this changes the advice already given: one body, one issue, one page — the Deputy Commissioner's office for the yes/no question, the Information Commissioner for the footage, the CCC once, and the court for everything evidential.

Cory Lea Shepherd — draft prepared 10 November 2026